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No. 94-226

Supreme Court, U.S.
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In The

Supreme Court of the United States

October Term, 1994

THE FLORIDA BAR,

Petitioner,

vs.

G. STEWART McHENRY; WENT FOR IT, INC.; and JOHN T. BLAKELY,

Respondents.

*On Writ of Certiorari to the United States Court of Appeals
for the Eleventh Circuit*

BRIEF FOR RESPONDENTS

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QUESTIONS PRESENTED

I. Under *Shapero v. Kentucky Bar Association*, does a Florida Bar 30-day ban on truthful, non-misleading, personal injury direct mail letters which fully comply with the Bar's extensive regulation of the content, delivery, and style of the letters, violate the First Amendment?

II. Has The Florida Bar met its burden, under *Central Hudson* or any First Amendment test, to justify a 30-day ban on lawyers' truthful, non-misleading, personal injury targeted direct mail letters?

PARTIES BELOW

United States District Court:

Plaintiffs - G. Stewart McHenry¹

Went For It, Inc.

Defendants - The Florida Bar

Susan V. Bloemendaal

United States Court of Appeals for the Eleventh Circuit:

Appellants - The Florida Bar

Susan V. Bloemendaal²

Appellees - Went For It, Inc.

John T. Blakely³

1. McHenry was not a party in the Court of Appeals because he was disbarred during the pendency of the district court proceedings and his individual claims against the Bar became moot. (Pet. Cert. App. 19-20).

2. The parties stipulated to the dismissal of Bloemendaal after the notice of appeal was filed. (R-28).

3. Blakely was added as a plaintiff-appellee during the pendency of the appellate proceedings. (Pet. Cert. App. 35 n. 7).

TABLE OF CONTENTS

	<i>Page</i>
Questions Presented	i
Parties Below	ii
Table of Contents	iii
Table of Citations	v
Opinions Below	1
Statement of Jurisdiction	1
Statement of the Case	1
Summary of the Argument	5
Argument	7
I. <i>Shapero v. Kentucky Bar Association</i> and Established Commercial Speech Doctrine Require Affirmance of the Decision Below.	7
A. <i>Shapero v. Kentucky Bar Association</i>	7
B. The Commercial Speech First Amendment Principles	11
C. The Asserted State Interests Are Not Directly or Proportionally Served by the Rule.	13

Contents

	Page
II. The 30-Day Rule Proscribing Certain Targeted Direct Mail Solicitation Is Content-Based and Violates the First Amendment.	19
III. The Court Should Decline the Florida Bar's Invitation to Revisit <i>Bates v. State Bar of Arizona</i>	24
A. Setting the Stage: Preserving Professionalism	25
B. Emotion and Hyperbole Are No Substitute for Reasoned Analysis of this Record.	28
C. The "Summary of the Record" Does Not Carry the Weight Assigned to it by the Bar or <i>Amici</i>	31
D. Lawyers Are Not Public Employees, Prisoners, School Children, or Members of the Armed Forces; the "Institutional Speech" Cases Do Not Support the Bar's Argument. .	35
Conclusion	37

Contents

Page

TABLE OF CITATIONS

Cases Cited:

<i>Bates v. State Bar of Arizona</i> , 433 U.S. 350 (1977)	4, 6, 24, 27, 28, 29, 30, 37, 38
<i>Board of Trustees of State Univ. of New York v. Fox</i> , 492 U.S. 469 (1989).	15, 16
<i>Caspari v. Bohlen</i> , 114 S. Ct. 948 (1994)	4
<i>Central Hudson Gas & Elec. Corp. v. Public Service Comm'n</i> , 447 U.S. 557 (1980)	i, 5, 6, 20, 30, 37
<i>City of Cincinnati v. Discovery Network, Inc.</i> , 113 S. Ct. 1505 (1993)	23
<i>City of Ladue v. Gilleo</i> , 114 S. Ct. 2038 (1994)	23
<i>City of Riverside v. Rivera</i> , 477 U.S. 561 (1986)	37
<i>Clark v. Community for Creative Non-Violence</i> , 468 U.S. 288 (1984).	20, 23
<i>Edenfield v. Fane</i> , 113 S. Ct. 1792 (1993)	34
<i>Frisby v. Schultz</i> , 487 U.S. 474 (1988)	18, 19
<i>F.T.C. v. Superior Court Trial Lawyers Ass'n</i> , 493 U.S. 411 (1990)	37

Contents

	Page
<i>Gentile v. State Bar of Nevada</i> , 501 U.S. 1030 (1991)	36
<i>Goldman v. Weinberger</i> , 475 U.S. 503 (1986)	24, 35, 36
<i>Gulf Oil Co. v. Bernard</i> , 452 U.S. 89 (1981)	36, 37
<i>Hazelwood School Dist. v. Kuhlmeier</i> , 484 U.S. 260 (1988)	24, 35, 36
<i>Hudson v. Palmer</i> , 468 U.S. 517 (1984)	24, 35
<i>Ibanez v. Florida Dept. of Business and Prof. Reg., Bd. of Accountancy</i> , 114 S. Ct. 2084 (1994)	11, 12, 13
<i>In re Primus</i> , 436 U.S. 412 (1978)	37
<i>In re R.M.J.</i> , 455 U.S. 191 (1982)	34
<i>Izumi Seimitsu Kogyo Kabushiki Kaisha v. U.S. Philips Corp.</i> , 510 U.S. ___, 114 S. Ct. 425 (1993)	4
<i>Kovacs v. Cooper</i> , 336 U.S. 77 (1949)	18, 19
<i>Matter of Anis</i> , 599 A.2d 1265 (N.J. 1992), cert. denied, <i>Anis v. New Jersey Committee on Attorney Advertising</i> , 112 S. Ct. 2303 (1992)	17
<i>McHenry v. The Florida Bar</i> , 808 F. Supp. 1543 (M.D. Fla. 1992)	1, 6

Contents

	Page
<i>McHenry v. The Florida Bar</i> , 21 F.3d 1038 (11th Cir. 1994)	1, 6, 10, 11, 15, 22
<i>Members of City Counsel v. Taxpayers for Vincent</i> , 466 U.S. 789 (1984)	18, 19
<i>Moore v. Morales</i> , 843 F. Supp. 1124 (S.D. Tex. 1994), appeal docketed, No. 94-20138 (5th Cir. Mar. 1, 1994)	25
<i>Muller v. Oregon</i> , 208 U.S. 412 (1908)	34
<i>Rankin v. McPherson</i> , 483 U.S. 378 (1987)	24, 35, 36
<i>Shapiro v. Kentucky Bar Ass'n</i> , 486 U.S. 466 (1988)	passim
<i>The Florida Bar v. Herrick</i> , 571 So. 2d 1303 (Fla. 1990) .	18
<i>The Florida Bar: Petition to Amend the Rules Regulating The Florida Bar — Advertising Issues</i> , 571 So. 2d 451 (Fla. 1990)	15, 20, 31, 34
<i>Ward v. Rock Against Racism</i> , 491 U.S. 781 (1989)	20, 23
<i>Yee v. City of Escondido</i> , 503 U.S. ___, 112 S. Ct. 1522 (1992)	4
Statutes Cited:	
28 U.S.C. § 1254(1)	1

Contents

	<i>Page</i>
42 U.S.C. § 1983	2
42 U.S.C. § 1988	37
United States Constitution Cited:	
First Amendment	i, 6, 11, 19, 31, 38
Rules Cited:	
Federal Rule of Civil Procedure, Rule 56	31
Rules Regulating The Florida Bar:	
Rule 3-5.1(h)	26
Rule 4-1.5(a)	26
Rule 4-1.5(d)	26
Rule 4-1.5(f)(B)	26
Rule 4-6.1	25
Rule 4-7.1	26
Rule 4-7.2	26
Rule 4-7.2(d)	26
Rule 4-7.2(e)	26

Contents

	<i>Page</i>
Rule 4-7.3	26
Rule 4-7.3(b)(1)	17
Rule 4-7.4	8, 13, 26
Rule 4-7.4(b)	38
Rule 4-7.4(b)(1)(A)	2, 19, 20
Rule 4-7.4(b)(1)(B)	8
Rule 4-7.4(b)(1)(F)	14
Rule 4-7.4(b)(2)(A)	18
Rule 4-7.5	26
Rule 4-7.8(a)	2
Ky. Supp. Ct. Rule 3.135(d)(b)(i)	7
Other Authorities Cited:	
Louise Hill, <i>A Lawyer's Pecuniary Gain: The Enigma of Impermissible Solicitation</i> , 5 Geo. J. of Legal Ethics, 393 (1994)	27
Louise Hill, <i>Solicitation By Lawyers: Piercing the First Amendment Veil</i> , 42 Me. L.Rev. 376 (1990)	28, 29

Contents

	<i>Page</i>
Stanley Ingber, <i>Judging Without Judgment: Constitutional Irrelevancies and the Demise of Dialogue</i> , 46 Rutgers L. Rev. (4) 1473 (1994)	35
Katherine A. Laroe, <i>Much Ado About Barratry: State Regulation Of Attorneys' Targeted Direct-Mail Solicitation</i> , 25 St. Mary's L.J. 1513 (1994)	25, 28, 30
Karl Llewellyn, <i>The Common Law Tradition, Deciding Appeals</i> , (Little Brown 1960)	18
1993 Florida Statistical Abstract, Table 1.20, Bureau of Economic and Business Research, College of Business Administration, University of Florida (University Press of Florida 1993, 27th ed.)	33
David M. O'Brien, <i>Of Judicial Myths, Motivations and Justifications: A Postscript on Social Science and the Law</i> , 64 Judicature No. 6, 285 (1981)	32
Michael Rustad & Thomas Koenig, <i>The Supreme Court and Junk Social Science: Selective Distortion in Amicus Briefs</i> , 72 N.C. L. Rev. 91 (1993)	32
Jay W. Stein, <i>Advertising in the Legal Profession (A Descriptive Bibliography and Reference Guide)</i> , Commission on Advertising, American Bar Association (1993)	30
<i>The New Yorker Book of Lawyer Cartoons</i> (Alfred A. Knopf, New York 1994)	34

Contents

Page

APPENDIX

Appendix A — Florida Rules of Discipline	1a
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OPINIONS BELOW

The citation to the decision below in Petitioner's Brief (p.1) is incorrect. The correct citation is *McHenry v. The Florida Bar*, 21 F.3d 1038 (11th Cir. 1994).

The final order of the United States district court granting summary judgment in favor of respondents is reported at *McHenry v. The Florida Bar*, 808 F. Supp. 1543 (M.D. Fla. 1992). Petitioner's Brief (p.1) incorrectly cited the date of the final judgment as August 5, 1992; the correct date is December 14, 1992. (R-21, 22).

STATEMENT OF JURISDICTION

The Florida Bar filed a Petition for Writ of Certiorari on August 3, 1994, seeking review of a May 10, 1994 final judgment of the United States Court of Appeals for the Eleventh Circuit. Jurisdiction in this Court was invoked under 28 U.S.C. § 1254(1).

STATEMENT OF THE CASE

Respondents submit a separate Statement of the Case to focus on the issues which were actually litigated and decided, and to expand upon the reasoning of the courts below.

The Florida Bar begins its Statement of the Case by discussing a survey it commissioned in 1987, five years prior to the initiation of this action, and four years prior to Florida's enactment and implementation of various lawyer advertising rule changes in 1991. The complete unpublished survey is not part of the record below, and neither it nor the "summary" which was introduced in the district court (R-15), played any substantive role in this case.

In 1992, one year after the implementation of Rules 4-7.4(b)(1)(A) and 4-7.8(a), R. Regulating Fla. Bar, which imposed a 30-day ban on targeted direct mail personal injury lawyer advertising following an accident or disaster (*see* Rules set forth in Pet. Brief pp. 2-3, and in the Appendix to this Brief), G. Stewart McHenry, a Florida lawyer who had used targeted direct mail advertising in the past, and his wholly owned corporation Went For It, Inc., sued The Florida Bar and its local assistant staff attorney Susan Bloemendaal under 42 U.S.C. § 1983, seeking to declare the rules unconstitutional and to enjoin their enforcement.

The complaint alleged that McHenry and Went for It, Inc. wished to send targeted direct mail letters within 30 days of an accident or personal injury, and that Florida attorneys would utilize Went for It, Inc.'s proposed attorney referral services but for the provisions of Rules 4-7.4(b)(1)(A) and 4-7.8.⁴ The Florida Bar did not file a responsive pleading, but instead agreed that there were no evidentiary matters in dispute and that the case presented only a question of law, and thus should be submitted on cross motions for summary judgment. (R-9). In its motion for summary judgment, the Bar argued only that the substantial interests served by the 30-day Rule were (1) the sensitized state of those "traumatized" by a personal injury, and (2) protecting the "personal privacy and tranquility" of those persons. (R-14-6,7).

The magistrate judge recommended that summary judgment be entered for the Bar. The district court rejected the magistrate's report and recommendation, and found that *Shapiro v. Kentucky Bar Association*, 486 U.S. 466 (1988), which upheld the constitutionality of truthful, non-misleading targeted direct mail

4. Went for It, Inc. alleged that it wished to conduct business as an attorney referral service, and *via* Rule 4-7.8(a) was subject to the same advertising restrictions as were Florida attorneys. (R-1-2,5).

lawyer advertising, was controlling and dispositive. Summary judgment was entered in respondents' favor. The district court rejected the Bar's asserted substantial interests (Pet. Cert. App. p. 23), and found that the challenged rules were not narrowly tailored. *Id.* at 25.⁵ The district court also rejected The Florida Bar's argument that the challenged rules were sustainable as time, place, and manner regulations, finding that the Rules were not content-neutral. Pet. Cert. App. 26-27. The district court wrote:

The challenged rules substantially impair and impede the availability of truthful and relevant information which can make a positive contribution to consumers in need of legal services. This Court holds that as a matter of law, the Florida Bar's thirty-day ban on personal injury and wrongful death targeted direct mail lawyer advertising violates the First, Fifth, and Fourteenth Amendments to the United States Constitution.

Pet. Cert. App. 29.⁶

The United States Court of Appeals for the Eleventh Circuit

5. No Joint Appendix was prepared, per agreement of the parties. Respondents cite to "Pet. Cert. App.," the Appendix contained in the petition for writ of certiorari, and to "Resp. App.," the appendix to this brief which contains the Florida Bar rules regulating advertising and solicitation.

6. The district court declaratory judgment led the Bar to agree that it would not enforce the 30-day rule during the pendency of appellate proceedings. Thus, Florida lawyers have been free to send appropriate targeted direct mail personal injury advertisement letters, at any time, since December 14, 1992.

affirmed, holding that neither of the Bar's asserted state interests (protecting traumatized persons who are unable to make an objective evaluation of a personalized solicitation from lawyer; protecting personal privacy of injured persons and their families) justified a 30-day ban on "otherwise constitutionally protected direct mail advertising by attorneys." Pet. Cert. App. 37. Relying on *Shapero's* guidance that "[t]he relevant inquiry is the *mode* of communication," Pet. Cert. App. 40, citing *Shapero* at 474, the Eleventh Circuit found that targeted direct mail advertising "possesses limited potential for overreaching. . . ." The court below also found that *Shapero* had considered and rejected the Bar's argument that a direct mail letter impermissibly invades the privacy of the recipient. Pet. Cert. App. 43-44. Finally, like the district court, the Eleventh Circuit found that the challenged rule was "unambiguously content-based," and therefore "not a reasonable time, place, and manner restriction on speech." *Id.* at 44-45.

The Florida Bar sought review, and now asserts that an additional "substantial state interest" is a concern for professionalism, and damage to the administration of justice by advertising lawyers. Additionally, the Bar now asks that *Bates v. State Bar of Arizona*, 433 U.S. 350 (1977), be "revisit[ed]" (Pet. Brief, p. 34) and that States be given latitude to weigh the value of lawyer advertising "and to engage in the experimentation and innovation' which is the proper realm of the States." *Id.* at 24.⁷

7. The "Questions Presented for Review" in the petition for writ of certiorari do not include a request to revisit *Bates*. Our argument in Point III, *infra*, is not a concession that revisiting *Bates* is fairly included within the questions presented by the Bar, but rather a response to the request to do so in Petitioner's Brief. Compare, *Caspari v. Bohlen*, 114 S. Ct. 948 (1994) (subsidiary question fairly included); *Izumi Seimitsu Kogyo Kabushiki Kaisha v. U.S. Philips Corp.*, 510 U.S. ___, 114 S. Ct. 425 (1993) (analytically and factually distinct question not fairly included); *Yee v. City of Escondido*, 503 U.S. ___, 112 S. Ct. 1522 (1992) (related, complementary question not fairly included).

SUMMARY OF THE ARGUMENT

The Florida Bar's 30-day ban on written communications concerning "an action for personal injury or wrongful death or otherwise relat[ing] to an accident or disaster," violates the First Amendment. *Shapero v. Kentucky Bar Association*, 486 U.S. 466 (1988), held that direct mail lawyer advertising is constitutionally protected commercial speech. The speech at issue in this case — truthful, non-misleading letters which fully conform to The Florida Bar's extensive rules on content, style and delivery — is squarely under *Shapero's* protective umbrella.

The Florida Bar offers two justifications for its 30-day ban. The first, never raised below, is that the 30-day prohibition serves "a substantial interest in maintaining the professionalism of the bar and public confidence in the administration of justice." Pet. Brief, p. 7. The second is an interest "in protecting the personal privacy and tranquility of its citizens from crass commercial intrusion by attorneys upon their personal grief in times of trauma." *Id.* at 8. Although concerns for professionalism underlie all regulations of professional conduct, the Bar's tardy invocation of the "administration of justice" as its primary argument in this Court is procedurally improper, as well as substantively flawed. With that caveat, respondents address both state interests now asserted.

The burden is upon the Bar to prove that (1) its interests are substantial; (2) the 30-day ban "advances these interests in a direct and material way;" and (3) "the extent of the restriction on protected speech is in reasonable proportion to the interests served." *Edenfield v. Fane*, 113 S. Ct. 1792, 1798 (1993) (citing the commercial speech test of *Central Hudson Gas & Elec. Corp. v. Public Serv. Comm'n*, 447 U.S. 557, 564 (1980)). The Bar has not carried that burden in this case.

Nothing in this record supports The Florida Bar's suggestion that professionalism, public confidence in the administration of justice, and personal privacy are directly, materially and reasonably served by the 30-day ban on attorney direct mail related to personal injury. Both the district court and the court of appeals concluded that the 30-day rule violates the First Amendment. *McHenry v. The Florida Bar*, 808 F. Supp. 1543 (M.D. Fla. 1992), *aff'd*, 21 F.3d 1038 (11th Cir. 1994); Pet. Cert. App. 18-29, 30-46. Apparently recognizing that *Shapero* and its progenitors and *Central Hudson* and its progeny condemn the Bar's rule, the Bar has asked the Court to "revisit the *Bates* [*v. State Bar of Arizona*, 433 U.S. 350 (1977)] premise and broaden the discretion of the States in the regulation of attorney commercial solicitation." Pet. Brief, p. 34. The Court should decline the invitation to scrap its precedents and to allow the States to create their own lawyer advertising First Amendment jurisprudence.

The Florida Bar and its *amici* do not offer principled bases for their attack upon *Bates* and upon established commercial speech doctrine. In briefs filled with emotion and hyperbole, references to unpublished, self-serving studies which *dehors* the record, argumentative analogies which fail the test of the legitimate leeways of precedent, and repeated disregard of the precise issues presented by the sole form of communication in this case, the Bar and its *amici* seek to exploit judicial antipathies to lawyer advertising. Reason, precedent, and *stare decisis* must guide First Amendment analysis. The decision below should be affirmed because the Bar's 30-day ban does not pass the tests of *Central Hudson* and *Shapero*, and because the Bar's "States' rights" argument fails to credit the value of First Amendment doctrinal stability.

ARGUMENT

I.

SHAPERO V. KENTUCKY BAR ASSOCIATION AND ESTABLISHED COMMERCIAL SPEECH DOCTRINE REQUIRE AFFIRMANCE OF THE DECISION BELOW

A. *Shapero v. Kentucky Bar Association*

This case presents the issue of whether Florida may, for thirty days, prohibit lawyers from soliciting legal business for pecuniary gain by sending truthful and nondeceptive letters to potential clients known to face a particular legal problem relating to a personal injury. The issue in *Shapero v. Kentucky Bar Association*, 486 U.S. 466 (1988), was nearly identical:

This case presents the issue whether a State may, consistent with the First and Fourteenth Amendments categorically prohibit lawyers from soliciting legal business for pecuniary gain by sending truthful and nondeceptive letters to potential clients known to face particular legal problems.

Id. at 468.

Two factors mark a minor difference between *Shapero* and this case. Kentucky's prohibition was total and related to all direct mail, including *Shapero*'s foreclosure action letter; Florida's prohibition is for 30 days, and it applies only to letters relating to a personal injury or wrongful death.⁸ Put another way,

8. In *Shapero*, Ky. Sup. Ct. Rule 3.135(5)(b)(i) provided:

the ban in *Shapiro* was content-neutral and complete; the ban in Florida is content-based and complete for the 30-day period of

(Cont'd)

A written advertisement may be sent to an individual addressee only if that addressee is one of a class of persons, other than a family, to whom it is also sent or delivered at or about the same time, and only if it is not prompted or precipitated by a specific event or occurrence involving or relating to the addressee or addressees as distinct from the general public.

Rule 4-7.4, R. Regulating Fla. Bar, provides in part:

(b) Written Communication.

(1) A lawyer shall not send, or knowingly permit to be sent, on the lawyer's behalf or on behalf of the lawyer's firm or partner, an associate, or any other lawyer affiliated with the lawyer or the lawyer's firm, a written communication to a prospective client for the purpose of obtaining professional employment if:

(A) the written communication concerns an action for personal injury or wrongful death or otherwise relates to an accident or disaster involving the person to whom the communication is addressed or a relative of that person, unless the accident or disaster occurred more than 30 days prior to the mailing of the communication.

In addition, Florida Bar Rules impose at least fifteen other regulatory requirements upon direct mail letters. See Rule 4-7.4(b)(1)(B) *et seq.*, reprinted in the appendix to this Brief. The decision below summarized those additional limitations:

(Cont'd)

time which follows the incident which triggers the potential need for legal services.

(Cont'd)

(1) no letters will be sent to persons known to be represented by another attorney in the matter;

(2) no letters will be sent to persons who have made it known to the sender that they do not want to receive such communication;

(3) no letters will subject the recipient to coercion, duress, fraud, overreaching, harassment, intimidation or undue influence;

(4) no letters will contain false, deceptive, or unfair statements or claims;

(5) no letters will be sent if the sender knows or reasonably should know that the physical, emotional or mental state of the recipient makes it unlikely that the recipient would exercise reasonable judgment in employing a lawyer;

(6) the face of every envelope will be marked in red with the word "advertisement," and every page of any letter sent will be similarly marked;

(7) a copy of the letter and envelope will be sent to the designated committee of the Bar and retained by the sender as required;

(8) letters will be sent by regular U.S. mail only, not by any other means;

(9) letters will contain no reference suggesting that the letter has been approved by the Bar;

(10) the appropriate statement of qualifications will accompany each letter sent;

(11) the first sentence of the letter will be "If you have already retained a lawyer for this matter, please disregard this letter";

(12) the letter will look like a letter, not a pleading or other legal document;

(13) if the matter will be handled by a lawyer other than the lawyer sending the letter, a statement to that effect will be included;

(Cont'd)

Both the district court and a unanimous panel of the court of appeals concluded that those differences, and the Florida Bar's rationale for distinguishing this case from *Shapero*, were not persuasive. The decision below carefully applied *Shapero*:

The Court [in *Shapero*] thus concluded that "[t]he relevant inquiry is not whether there exist potential clients whose 'condition' makes them susceptible to undue influence, but whether the mode of communication poses a serious danger that lawyers will exploit any such susceptibility." *Id.*

* * *

The relevant inquiry is the *mode* of communication. *Id.* at 474, 108 S. Ct. 1922. A letter, especially a letter marked "advertising material" in red, possesses limited potential for overreaching, whether the client is overwhelmed by pending litigation, personal injury or grief. *See id.*

* * *

(Cont'd)

(14) the letter will disclose how the sender obtained information about the recipient's involvement in the accident or disaster that prompted the letter; and

(15) the nature of the recipient's legal problem will not be revealed on the outside of the envelope.

21 F.3d at 1040 n.6; Pet. Cert. App. 33-34 n.6.

Even if *Shapero* could be read to support restrictions based upon the letter recipient's sensitivity, we are not persuaded that the heightened sensitivity of some potential recipients justifies a prophylactic rule such as this. This is especially true considering that the period immediately following an accident or disaster may well be the time when the need for legal advice is most pressing. "[T]he States may not constitutionally ban a particular letter on the theory that to mail it only to those whom it would most interest is somehow inherently objectionable." *Shapero*, 486 U.S. at 473, 108 S. Ct. at 1922.

McHenry v. The Florida Bar, 21 F.3d 1038, 1042-1043 (11th Cir. 1994); Pet. Cert. App. 40 (footnotes omitted; emphasis in original).

Shapero, its application of established commercial speech precedents, and the post-*Shapero* decisions of this Court compel the conclusion that the decision below was unremarkable: it properly applied the relevant precedents. Therefore we turn to those First Amendment principles which form the foundation for affirmance of the decision below; doctrines The Florida Bar now seeks to discard.

B. The Commercial Speech First Amendment Principles

Late last term the Court reversed the Florida Board of Accountancy's attempt to discipline a Florida lawyer who used her Certified Public Accountant (CPA) designation "in her yellow pages listing (under 'Attorneys') and on her business card [and her] 'Law Offices' stationery." *Ibanez v. Florida Dept. of Bus. and Prof. Reg., Bd. of Accountancy*, 114 S. Ct. 2084 (1994).

The Court summarized the standards for reviewing restrictions on commercial speech:

Because "disclosure of truthful, relevant information is more likely to make a positive contribution to decisionmaking than is concealment of such information," *Peel v. Attorney Registration and Disciplinary Comm'n of Illinois*, 496 U.S. 91, 108 (1990), only false, deceptive or misleading commercial speech may be banned. *Zauderer v. Office of Disciplinary Counsel of Supreme Court of Ohio*, 471 U.S. 626, 638 (1985) Commercial speech that is not false, deceptive or misleading can be restricted, but only if the state shows that the restriction directly and materially advances a substantial state interest in a manner no more extensive than necessary to serve that interest. *Central Hudson Gas & Electric Corp. v. Public Service Comm'n of N.Y.*, 477 U.S. 557, 566 (1980); *See also, id.* at 564 (regulation will not be sustained if it "provides only ineffective or remote support for the government's purpose"); *Edenfield v. Fane*, 507 U.S. — (1993) (slip op., at 5-6) (regulation must advance substantial state interest in a "direct and material way" and be in "reasonable proportion to the interests served"); *In re R.M.J.* [455 U.S. 191] *supra* at 203 (state can regulate commercial speech if it shows that it has "a substantial interest" and that the interference with speech is "in proportion to the interest served").

Ibanez, 114 S. Ct. at 2088-2089 (citations omitted).

Those standards are not lightly applied:

The State's burden is not slight; the "free flow of commercial information is valuable enough to justify imposing on would-be regulators the costs of distinguishing the truthful from the false, the helpful from the misleading, and the harmless from the harmful." *Zauderer, supra* at 646.

Id. at 2089 (citations omitted).

Thus, the Bar must prove this case: that direct mail letters to accident victims harms them and harms the administration of justice, and that the 30-day rule directly, materially, and in a manner no more extensive than necessary, assuages those "harms." Even if we assume that protecting "disaster victims" and "the administration of justice" are substantial state interests, the Bar has not made its case.

C. The Asserted State Interests Are Not Directly or Proportionally Served by the Rule

The Comment to Rule 4-7.4 articulates the Bar's stated reason for the 30-day rule:⁹

9. Without conceding that it is properly preserved, we address below in Point III, the Bar's never-presented- below suggestion that direct mail somehow undermines "the public's perception of, and confidence in, [the State's] system of justice and those who administer it [thus affecting] the stability of a democratic society." Pet. Brief, p. 19 (footnote omitted). This newly advanced interest is contradicted by the Comment to Rule 4-7.4 and its statement that: "Direct written communications seeking employment by specific prospective clients generally present less potential for abuse or overreaching than in-person solicitation and are therefore not prohibited for most types of legal matters"

This restriction is reasonably required by the sensitized state of the potential clients, who may be either injured or grieving over the loss of a family member, and the abuses that experience has shown exist in this type of solicitation.

In its Brief, the Bar posits the interest as "protecting the personal privacy and tranquility of its citizens from crass commercial intrusion by attorneys upon their personal grief in times of trauma." Pet. Brief 8. Putting aside the Bar's emotional rhetoric, and accepting that privacy in time of grief is important, the constitutional inquiry is how this 30-day rule directly, materially, and in proportion to the claimed interest, advances that interest.

Grief is not the gravamen of the 30-day rule. The rule applies to any accident. Oddly, another Florida Bar rule directly, materially and proportionally addresses the Bar's trauma theme. Rule 4-7.4(b)(1)(F) prohibits sending any written communication, at any time, if . . .

the lawyer knows or reasonably should know that the physical, emotional, or mental state of the person makes it unlikely that the person would exercise reasonable judgment in employing a lawyer.

See Resp. App. p. 13a. Assuming that the Rule 4-7.4(b)(1)(F) restriction serves an important interest, the 30-day rule is distinguishable; by prohibiting written communications to all people, whatever their state of mind, it keeps useful information from those accident victims who are ready, willing and able to utilize a lawyer's advice. *Shapiro* recognized the importance of the availability of legal information to those most needing it. 486

U.S. at 473. The court below also saw the informational importance in "the period immediately following an accident or disaster." 21 F.3d at 1043; Pet. Cert. App. 41. When the Supreme Court of Florida considered the proposed rules, Justice Shaw wrote:

In my opinion, this constitutes an absolute ban on personal injury cases during a most critical period. This ban will effectively deprive many accident victims of information concerning the availability of professional legal assistance precisely when they need it most — during the initial period following a serious accident when they are confronted with an unintelligible legal tangle and demands to waive or compromise their rights. It is during this time that informed decisionmaking is crucial.

The Florida Bar: Petition to Amend the Rules Regulating The Florida Bar — Advertising Issues, 571 So. 2d 451, 474 (Fla. 1990) (Shaw, C.J., concurring in part and dissenting in part).

Those concerns are underscored by the fact that there are no communication restraints imposed upon tortfeasors, their agents, or their insurers. An insurance adjuster is free to contact any injured or bereaved person within 30 minutes of an accident or disaster. The 30-day absolute prohibition on truthful, non-misleading, extensively regulated direct mail contact by lawyers with every person potentially suffering a personal injury fails every articulated standard for measuring restraints on commercial speech. Compare, *Board of Trustees of State Univ. of New York v. Fox*, 492 U.S. 469 (1989):

Our cases have repeatedly stated that

government restrictions upon commercial speech may be no more broad or no more expansive than "necessary" to serve its substantial interests, see, e.g., *Central Hudson*, *supra* at 566

* * *

What our decisions require is a "fit" between the legislature's ends and the means chosen to accomplish those ends, *Posadas [de Puerto Rico Assocs. v. Tourism Company of Puerto, 478 U.S.]* at 341 — a fit that is not necessarily perfect, but reasonable; that represents not necessarily the single best disposition, but one whose scope is "in proportion to the interest served," *In re R.M.J.*, *supra*, 455 U.S. at 203; that employs not necessarily the least restrictive means, but as we have put it in the other contexts discussed above, a means narrowly tailored to achieve the desired objective.

Id. at 476-480.

The Florida Bar effort to evade those principles takes two argumentative forms. First the Bar (and its *amici*) refuse to recognize the distinctions between disaster and accident, grief and injury.¹⁰ The second is an invocation of "residential privacy"

10. The Bar Brief repeatedly charges its arguments with melodrama: "personal grief in times of trauma" (p. 8); "loved ones were recent victims of personal injury or death" (p. 25); "times of deep personal trauma . . . private grief" (p.28); "'universally regarded as deplorable and beneath common decency because of its intrusion upon the special vulnerability and private

(Cont'd)

(Pet. Brief 27) and attempted analogies to cases concerned with residential picketing, sound trucks and election signs on public property. *Id.* at 25-27. The Bar never mentions *Shapero's* privacy analysis. Distinguishing direct mail letters from lawyer in-person solicitation, the Court said in *Shapero*:

A letter, like a printed advertisement (but unlike a lawyer), can readily be put in a drawer to be considered later, ignored, or discarded. . . . Nor does a targeted letter invade the recipient's privacy any more than does a substantively identical letter mailed at large. The invasion, if any, occurs when the lawyer discovers the recipient's legal affairs, not when he confronts the recipient with the discovery.

486 U.S. at 475.¹¹ The *Shapero* Court was succinct: "The letter

(Cont'd)

grief of victims or their families' " (pp. 28-29) (quoting from *Matter of Anis*, 599 A.2d 1265, 1270 (N.J. 1992), *cert. denied*, *Anis v. New Jersey Committee on Attorney Advertising*, 112 S. Ct. 2303 (1992)). The *Anis* court publicly reprimanded a lawyer for sending a false, misleading letter to the parents of a victim of the terrorist bombing of Pan Am Flight 103 over Lockerbie, Scotland, two weeks after the disaster. That letter violated, *inter alia*, New Jersey RPC 7.3(b)(1), prohibiting written communication with prospective clients when an attorney "knew or should have known that the person's physical, emotional, or mental state was such that the prospective client could not exercise reasonable judgment in employing a lawyer." 599 A.2d at 1268. The Florida Bar Brief (p. 27) disingenuously describes that New Jersey rule as "a restriction similar to Florida's" all inclusive 30-day ban. Contrary to the Bar's view, neither the New Jersey rule, nor the facts underlying the *Anis* opinion, have any application to the rule in this case, which prohibits truthful, non-misleading letters directed to any injured person.

11. The Court's concerns in *Shapero* for the possible effects of

(Cont'd)

simply presents no comparable risk of overreaching." *Id.* at 479.

Similarly, letters present no legitimate comparison to residential picketing, sound trucks and election signs on public property. The Bar's offering of *Frisby v. Schultz*, 487 U.S. 474 (1988); *Kovacs v. Cooper*, 336 U.S. 77 (1949); and *Members of City Counsel v. Taxpayers for Vincent*, 466 U.S. 789 (1984) (Pet. Brief 25-27) is an illegitimate use of precedent. See Karl Llewellyn, *The Common Law Tradition, Deciding Appeals*, (Little Brown & Co., 1960):

When the fair—even the strained meaning of an authority is distorted into nonrecognizability, the immediate effect on the detail of the doctrine in question is confusion.

Id. at 134. Analysis of the Bar's cases reveals why this Court should reject The Florida Bar's effort to liken lawyers' letters to residential picketers, sound trucks and election signs.

The Court's support for the content-neutral ordinance in *Frisby*, which banned picketing in front of an individual's

(Cont'd)

personalized mailings, 486 U.S. at 476, are addressed by the myriad Florida Bar rules regulating the content, style and delivery of the letters themselves. See Resp. App. In particular, Rule 4-7.4(b)(2)(A), requiring the envelope and each page of the letter to be "plainly marked 'advertisement' in red ink," permits disinterested recipients to discard the letter unopened. See *The Florida Bar v. Herrick*, 571 So. 2d 1303 (Fla. 1990), sanctioning a lawyer for omitting the red "advertisement," and noting that the purpose of that rule is to "assuage any concerns the recipient may have due to receiving a personalized letter from an attorney." *Id.* at 1306. The content and style aspects of direct mail are not at issue in this case, but we note that those restrictions on the appearance of the letter may, in fact, be narrowly tailored to advance the Bar's interests.

residence, emphasized the "offensive and disturbing nature of the form of the communication." 487 U.S. at 487. The evil prevented by the ordinance was unwelcome in-person visitors at residences. *Id.* *Kovacs* upheld a content-neutral ordinance preventing the use of sound trucks and loudspeakers which emit "loud and raucous noises." 336 U.S. at 86.¹² *Taxpayers for Vincent* permitted a city to utilize a content-neutral ordinance prohibiting the posting of signs on public property to preserve urban aesthetics. 466 U.S. at 816.

None of those cases can honestly support the notion that a lawyer's letter poses analogous direct threats to residential auditory, visual, or emotional privacy. Indeed, the only relevant lesson of those cases is that they condemn the 30-day rule in this case because it is not content-neutral.

II.

THE 30-DAY RULE PROSCRIBING CERTAIN TARGETED DIRECT MAIL SOLICITATION IS CONTENT-BASED AND VIOLATES THE FIRST AMENDMENT

When Rule 4-7.4(b)(1)(A) was adopted by the Supreme Court of Florida in 1990, that court understood that only letters offering personal injury legal services are *verboten*:

The proposed commentary explains that targeted mail solicitation is prohibited *only* in the areas of personal injury and wrongful death.

12. In *Kovacs* the Court distinguished an unwilling listener from a "passer-by who may be offered a pamphlet in the street but cannot be made to take it." *Id.* at 87. Nearly forty years later the Court similarly described mail from a lawyer as a communication which "can readily be put in a drawer to be considered later, ignored, or discarded." *Shapiro*, 486 U.S. at 475-76.

The Florida Bar: Petition to Amend the Rules Regulating The Florida Bar — Advertising Issues, 571 So. 2d 451, 454 (Fla. 1990) (emphasis in original).¹³ Yet despite the plain words of the rule, and despite the Supreme Court of Florida's clear statement, the Bar says the 30-day rule is "content neutral," and argues that if the rule cannot survive under the commercial speech test of *Central Hudson*, that it is independently sustainable as a reasonable time, place, and manner restriction on speech under the test of *Ward v. Rock Against Racism*, 491 U.S. 781 (1989), and *Clark v. Community for Creative Non-Violence*, 468 U.S. 288 (1984). See Pet. Brief at 29 (the 30-day rule "has nothing to do with content").

On the face of the rule, the Bar's "content neutral" argument is inexplicable. Every court which has considered it has rejected the Bar's position and found the rule to be unequivocally content-based. Furthermore, even if the rule could survive the time, place, and manner threshold of content neutrality, it is not "narrowly tailored" as required equally by *Ward*, *Clark*, and *Central Hudson*. The content-neutral regulations upheld in *Ward* (a city regulation which regulated the volume of all music, not only rock music), and *Clark* (park regulations forbidding all camping, not just that of the demonstrators), are far different from

13. Respondents recognize that the rule prohibits targeted direct mail advertising for a cause of action which "concerns an action for personal injury or wrongful death or otherwise relates to an accident or disaster," R. 4-7.4(b)(1)(A) (emphasis supplied). But whether that language encompasses only personal injury (as the Supreme Court of Florida said) or also includes non-personal injury but related matters (like probate), is irrelevant to the conclusion that the rule is content-based. It is beyond dispute that some targeted direct mail advertisements (e.g., for forfeitures, bankruptcies, traffic offenses, divorces, non-accident-related class actions) are not banned for 30 days after an incident. Therefore, the rule is indisputably content-based; the only dispute may be over its scope. Resolution of that dispute is not necessary to the issues in this case.

The Florida Bar's content-based rule regulating only personal injury advertising by plaintiffs' attorneys.

Seeking to evade the content neutrality rules, the Bar invokes a condition-of-recipient defense that forgets *Shapiro's* lesson that, in lawyer advertising, "[t]he relevant inquiry is not whether there exist potential clients whose 'condition' makes them susceptible to undue influence, but whether the *mode of communication* poses a serious danger that lawyers will exploit such susceptibility." 486 U.S. at 474 (emphasis supplied). Here, that mode is a letter. Pursuing its flawed perspective, the Bar writes:

The regulation is *not intended to prohibit the message* (solicitation of business), but, like the regulation [of noise] in *Ward*, to avoid undue intrusion into the personal privacy of individuals during a particularly trying period, and to protect the bar from the public perception that it is unprofessional and driven solely by pecuniary interests.

* * *

[T]he challenged rule is *not aimed at the content of the message*, but at the secondary effects upon the legal profession, and ultimately upon our system of justice, occasioned by the public's reaction to the particular type of advertizing.

Pet. Brief 31-32 (emphasis supplied).

But it is the content — personal injury, wrongful death, or otherwise related to an accident or disaster — which dooms a

letter under the rule. Indeed, contrary to the Bar's assertion, the content of the letter is the only justification offered for the rule. The Eleventh Circuit wrote:

States may place restrictions on the time, place, and manner of constitutionally protected communication if they do so: (1) without regard to the content of the communication, (2) in a manner narrowly tailored to serve a significant governmental interest, and (3) leaving open alternative channels for communication. *Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 294, 104 S. Ct. 3065, 3069, 82 L.Ed.2d 221 (1984). We conclude that the Bar's Rule fails to meet the first element of the test described in *Clark*.

On its face the thirty-day Rule is *unambiguously content-based*. It applies only to letters that "concern[] an action for personal injury or wrongful death." R. 4-7.4(b)(1)(A). It is, then the subject matter of the letter, a solicitation for a certain type of representation, that triggers application of the Rule.

21 F.3d at 1044; Pet. Cert. App. 44 (emphasis supplied). The district court also found that "it is the content of the advertisement which is banned for thirty days," and that the rule "is not content neutral and cannot be upheld as a valid time, place and manner restriction." Pet. Cert. App. 26-27.

A finding that the rule is content-based obviates the need to proceed with the time, place and manner analysis. Content

neutrality is the *sine qua non* for a permissible time, place and manner restriction. See *City of Cincinnati v. Discovery Network, Inc.*, 113 S. Ct. 1505, 1517 (1993). But the Bar, retreating again from the guiding legal principles, asserts that "the opinion below places undue emphasis on the first element of the time, place and manner test, content review, as though it stands alone." Pet. Brief at 32-33. Since content-neutrality is the linchpin of the *Ward* and *Clark* test, that element does stand alone, and quashes the Bar's time, place and manner argument.

This Court recently recognized that a ban on a form of speech, which contains exemptions, is suspect:

Exemptions from an otherwise legitimate regulation of a medium of speech may be noteworthy for a reason quite apart from the risks of viewpoint and content discrimination: they may diminish the credibility of the government's rationale for restricting speech in the first place. See, e.g., *Cincinnati v. Discovery Network, Inc.*, 507 U.S. ___, 113 S. Ct. 1505, 1511-1515, 123 L.Ed.2d 99 (1993).

City of Ladue v. Gilleo, 114 S. Ct. 2038, 2044 (1994) (holding that a total ban on residential signs — with some exemptions — was unconstitutional). Correspondingly, a ban on some but not all forms of lawyer targeted direct mail advertising, for a 30-day period, diminishes the credibility of the Bar's rationale. The Bar's "billboards, and other signs, radio, television and recorded messages" alternative means of communication argument (Pet. Brief at 33) further diminishes its cause. It is ironic and amusing that the Bar's concern for the image of lawyers and the administration of justice nevertheless allows it to prefer billboards to a letter, which is marked as an "advertisement" and

discretely delivered to someone who actually may immediately need the service offered by the lawyer.

The 30-day rule is content-based. It cannot be saved by sophistry.

III.

THE COURT SHOULD DECLINE THE FLORIDA BAR'S INVITATION TO REVISIT *BATES V. STATE BAR OF ARIZONA*

Recognizing that established precedent invalidates the 30-day rule, the Bar asks that *Bates* be revisited in the name of "maintaining the professionalism of the bar and public confidence in the administration of justice." Pet. Brief at 7. The Bar seeks to add analytical weight to its argument by analogizing lawyers to public employees (*Rankin v. McPherson*, 483 U.S. 378 (1987)); prisoners in penal institutions (*Hudson v. Palmer*, 468 U.S. 517 (1984)); soldiers, sailors and marines (*Goldman v. Weinberger*, 475 U.S. 503 (1986)); and school children (*Hazelwood School Dist. v. Kuhlmeier*, 484 U.S. 260 (1988)). Pet. Brief at 15-24. Those "strained analogies" (Pet. Cert. App. 26) are unconvincing.

The syllogism, according to the Bar and its *amici*, is this: since lawyers are officers of the court, and since some people do not like lawyer advertising, public confidence in the administration of justice is threatened by lawyer advertising, requiring that the states be given broad regulatory discretion in order to preserve "the stability of a democratic society." Pet. Brief 19. The Bar's construct is built on: (1) defective case analogies; (2) emotion and hyperbole; (3) refusal to adhere to the precise issue and record in this case; (4) junk social science; and (5) disregard for the established law. We address these

shortcomings below, but first we direct the Court to The Florida Bar's effort to insure high standards and professionalism in the advertising area.

A. Setting the Stage: Preserving Professionalism

Because law is a profession which serves important interests and should be imbued with high ethical standards, it is highly regulated. Law schools must strive to meet the strictures of the American Bar Association Committee on Accreditation and the accreditation standards of the American Association of Law Schools. Law students seeking admission to the bar must pass rigorous examinations, and their character is subject to review by boards of bar examiners. Once admitted, lawyers are subject to an extensive disciplinary code. Florida, like many states, requires continuing legal education of its practitioners, and encourages *pro bono* activities as part of yearly license renewal. See Rule 4-6.1, R. Regulating Fla. Bar. All of these constraints on conduct seek to achieve a balance between economic self-interest and devotion to the special public services performed by lawyers.

The Florida Bar has been a leader in responding to Justice O'Connor's view that "fairly severe constraints on attorney advertising can continue to play an important role in preserving the legal profession as a genuine profession." *Shapiro v. Kentucky Bar Ass'n*, 486 U.S. 466, 491 (O'Connor, J., dissenting).¹⁴ In addition to the rules governing "Direct Contact

14. All fifty states now have provisions regulating lawyers' targeted direct mail. The applicable rules are collected in the appendix to Katherine Laroe, *Much Ado About Barratry: State Regulation of Attorneys Targeted Direct-Mail Solicitation*, 25 St. Mary's L.J. 1513, 1555 (1994). Texas has attempted to follow Florida's 30-day direct mail ban; Nevada has a 45-day prohibition. *Id.* The Texas 30-day rule was found to be unconstitutional. *Moore v. Morales*, 843 F. Supp. 1124 (S.D. Tex. 1994), appeal docketed, No. 94-20138 (5th Cir. Mar. 1, 1994).

with Prospective Clients" (Rule 4-7.4, reprinted in the respondents' Appendix), Rule 4-7.1 addresses "false, misleading, deceptive or unfair" communications by a lawyer. Rule 4-7.2 severely limits the style and content of all advertising, including a mandate of "no dramatization in any advertisement in any medium." Rule 4-7.2(e), R. Regulating Fla. Bar. Rule 4-7.2 also precludes the use of celebrities, multiple voices, illustrations which are not factually substantiated, and self-laudatory statements, and requires advertisements to contain a statement that hiring a lawyer "should not be based solely on advertisements." Rule 4-7.2(d).

Rule 4-7.3 requires advertising lawyers or law firms to provide printed information detailing qualifications and the standard "Statement of Client's Rights." A copy of that form is contained in the Appendix to this Brief. Resp. App. 2a-3a. And, contingency fees are regulated by Rule 4-1.5(f)(B); fees obtained in violation of the advertising rules are forfeitable. Rules 4-1.5(a) and (d) and 3-5.1(h). Resp. App. 1a-2a.

The Florida Rules create a "Standing Committee on Advertising" to evaluate lawyers' advertisements and to provide advisory opinions. Chapter 15 (Review of Lawyer Advertisements and Solicitations), R. Regulating Fla. Bar. Rule 4-7.5 details the tasks of the Committee and the applicable filing requirements.

There is no question that Florida, like the other states, has sought to preserve the high standards of the legal profession via diligent enforcement of the Rules of Professional Conduct in order to protect against abuses of clients and abuse of the administration of justice. The American Bar Association's Center for Professional Responsibility National Discipline Data Bank collects reported nationwide disciplinary court orders describing the facts and sanction imposed. The totals were, for 1986 - 2,652;

1987 - 1,336; 1988 - 3,072; 1989 - 4,458; and 1990 - 6,419.¹⁵ The ABA coding categories are: Theft/Recordkeeping (trust accounts); Conflict of Interest; Neglect and Incompetence; Misrepresentation or Fraud; Relationship with Client or Court; Fees; Criminal Activity; Personal Behavior; Improper Communications. The latter grouping is further broken down into "Advertising" and "Solicitation." Of the total 13,937 reported sanctions, only 53 involved advertising and solicitation. The leading causes of discipline were neglect, incompetence, theft, recordkeeping (trust accounts), misrepresentation, fraud, personal behavior and criminal acts. *Id.*¹⁶

Florida's experience is similar. Of the more than 1000 reported Supreme Court of Florida lawyer discipline cases since *Bates*, only seven involved advertising, and five others involved in-person solicitation. The rest fell within the national categories enumerated above.¹⁷

15. According to the ABA, the absence of facts for coding purposes means that the actual numbers are approximately double those listed above. 1990 was the last available year.

16. One commentator, seeking more 1985-1990 information regarding solicitation, sought responses from the 57 Lawyer Disciplinary Agencies listed by the American Bar Association Center for Professional Responsibility. Louise Hill, *A Lawyer's Pecuniary Gain: The Enigma of Impermissible Solicitation*, 5 Geo. J. of Legal Ethics 393, 419 (1994). The reported cases involved *inter alia*, paying for referrals; contacting hospitalized persons, contacting divorce litigants, in-person solicitation of criminal defendants, contacting public officials to seek town's business. *Id.* at 419-421 nn. 154-159.

17. Florida data were obtained by searching the Westlaw FL-CS computerized database using the following query:

ti("Florida Bar v." & complainant) & (attorney lawyer counselor /s disciplin! grievance complaint referee) & da(aft 6/27/77) % "unlicensed practice of law")

Two conclusions seem apparent from these data. First, post-*Bates* and *Shapero*, Florida has thoroughly and firmly regulated lawyer advertising to protect against false, misleading, deceptive, unprofessional, and over-reaching communications. Second, Florida's lawyers, like those nationwide, rarely run afoul of advertising rules. The transgressions which publicly tarnish our professional image relate to lawyers' disregard of their clients' interests and disregard of the laws generally applicable to all persons in our society.

B. Emotion and Hyperbole Are No Substitute for Reasoned Analysis of this Record

The Bar charges that *Bates* "thrust aside centuries of Anglo-American law" (Pet. Brief 9) and that lawyer advertising impacts "the stability of a democratic society." *Id.* at 19. The Academy of Florida Trial Lawyers Brief refers to the consequences of *Bates* as "disastrous" and "eating away at the public's confidence in the judiciary." AFTL Brief at 2, 5.

History does not support the hyperbole of the Bar or its *amici*. Our profession's English roots evolved from "[a]n intimate fraternity of rich young men [who] lived, ate, and learned the law together [and who] [b]ecause they were wealthy and did not need to earn a living, . . . viewed law practice as a public service instead of a trade Economic competition did not exist in barristers' legal or social interactions, and the profession assumed a certain cordial dignity." Katherine Laroe, *Much Ado About Barratry: State Regulation Of Attorneys' Targeted Direct-Mail Solicitation*, 25 St. Mary's L.J. 1513, 1519 (1994) [hereinafter Laroe] (footnotes omitted). In colonial America, the residue of these class distinctions led to the perception that bar associations were "the exclusive and secret trade unions of a privileged class [and] were deemed to be undemocratic and un-American." Louise Hill, *Solicitation by*

Lawyers: Piercing the First Amendment Veil, 42 Me. L. Rev. 369, 376, 379 (1990) (footnotes omitted). As a result, some states opened law practice to "every voter of good moral character[.]" making the bar "essentially open" during the nineteenth century, and leading to the suggested codes of conduct which were formalized by the Alabama State Bar Association's adoption of "the first formal Code of Ethics for the legal profession in 1887." *Id.* at 379-381 (footnotes omitted).

The cataclysmic reactions to *Bates* are belied both by the vintage of the laws prohibiting solicitation and by the ability of a democratic society and its judicial system to have survived the evolution of the legal profession from a small fraternity of men from England's first families to a profession comprised of men and women from diverse backgrounds who practice law and serve justice in a world far different from the thirteenth through nineteenth centuries. Attitudes which prevailed "as a principle of good taste among a small and homogenous group of practitioners during the formative period of the profession" do not shed much light on the First Amendment issue posed by this case. Hill, *supra*, 5 Geo. J. Legal Ethics at 394.

Seeking to avoid *Shapero* and the specific facts of this case, the Bar and all its *amici* continually refer to lawyer advertising generically, refusing to focus on direct mail. The Bar asks the Court to "open the yellow pages of any major city." Pet. Brief at 14. The Academy of Florida Trial Lawyers writes of the "bombardment of grotesque television commercials." AFTL *Amicus Curiae* Brief at 8. The multi-state *amicus* brief makes no mention of direct mail letters. The New York State Bar Association, *Amicus Curiae* Brief at 3, complains only of advertising which is "sensational, exploitive or devoid of any meaningful information." The Association of Trial Lawyers of America (ATLA) says that "unrestrained solicitation of clients may prejudice injured plaintiffs in the eyes of potential jurors."

ATLA *Amicus Curiae* Brief at 4. These and similar statements ignore the myriad bar regulatory rules in Florida and elsewhere, and the fact that this case is about truthful, non-misleading direct mail letters to people who may actually need a lawyer.¹⁸

Montaigne wrote: "Obstinacy and heat in argument are surest proofs of folly." *New Dictionary of Thoughts*, p. 447 (Standard Book Co. 1965). The zeal to reverse *Bates* and *Shapero*, and *Central Hudson* as applied to lawyers, has led The Florida Bar and its *amici* to arguments more shrill than sound. There is no question that *Bates* and its progeny have generated a large body of pro and con commentary. See Jay W. Stein, *Advertising in the Legal Profession (A Descriptive Bibliography and Reference Guide)*, Commission on Advertising, American Bar Association (1993); Laroe, *supra* at 1541, nn. 97-100. But neither reason nor the record in this case supports the doomsday entreaties of Petitioner and its *amici*.

18. ATLA's concern is that advertising may lower jury verdicts because jurors may be prejudiced against advertising lawyers. ATLA Brief 10-14. *Voir dire* is the traditional method used by trial lawyers to weed out prejudice, thus ATLA's concerns for plaintiffs and the contingency fees of its members can be protected without resort to reversing *Bates*. Moreover, ATLA's President, in a recent letter complaining of an (unrelated to advertising) "smear of attorneys who represent consumers," condemns "biased . . . 'studies' . . . underwritten by corporate America" and concludes with a paean which applies to the speech which ATLA seeks to suppress:

If standing up for injured consumers against the negligent and reckless means that trial lawyers have to bear the brunt of virulent attacks, then indeed that is a small price to pay.

Larry S. Stewart, *Lawyers Will Wear Your Mud Proudly*, *The Wall St. J.*, Nov. 23, 1994, at A-15, col. 1 (letter to the editor).

C. The "Summary of the Record" Does Not Carry the Weight Assigned to it by the Bar or *Amici*

The Bar filed in the district court "a copy of a document filed in the Supreme Court of Florida . . . on or about January 23, 1990 . . . as part of the [Bar's] petition for amendment of the Rules Regulating the Florida Bar." (R-9-1). That document, entitled "Summary of the Record," purported to summarize various materials submitted to the Supreme Court of Florida when the Bar sought approval of numerous new rules governing lawyer advertising. *The Florida Bar: Petition to Amend the Rules Regulating The Florida Bar—Advertising Issues*, 571 So. 2d 451 (Fla. 1990). Neither the Supreme Court of Florida, nor the district court, nor the court of appeals below, mentioned the Bar's "record" in their respective opinions regarding the direct mail 30-day rule.

The summary submitted in the district court was not offered under Rule 56, Fed. R. Civ. P., as facts supporting summary judgment. The parties had stipulated that there were no disputed issues of actual fact. The only "fact" established by the filing of the summary was that it had previously been filed in the Supreme Court of Florida.

What then is the value of the summary? Is it the sort of "empirical evidence" which deserves serious consideration in deciding a First Amendment issue? Its collection of anecdotes, newspaper headlines, inadmissible hearsay and unpublished survey results, underscores the importance of this caution:

Should the meaning of the Constitution and the Bill of Rights depend upon a sociologist's most recent study of crowd control, or a political scientist's latest public opinion survey?

David M. O'Brien, *Of Judicial Myths, Motivations and Justifications: A Postscript on Social Science and the Law*, 64 *Judicature* No. 6, 285, 289 (1981) (footnotes omitted); see also Michael Rustad & Thomas Koenig, *The Supreme Court and Junk Social Science: Selective Distortion in Amicus Briefs*, 72 N.C. L. Rev. 91, 95 (1993) ("The poorly controlled use of social science data by *amici curiae* may not only be prejudicial to the parties, but inimical to sound judicial decision-making.").¹⁹

The *amici* and Florida Bar reliance on a Bar commissioned 1987 unpublished survey by Frank N. Magid Associates, *Attitudes and Opinions of Florida Adults Toward Direct Mail Advertising by Attorneys*, exemplifies the dangers of decisions driven by surveys and anecdotes. Magid's complete report, which had been filed with the Supreme Court of Florida, reveals that its conclusions about "the public" and "Florida adults" were in fact drawn from 200 direct mail recipients, and that among those persons:

It is true that a large majority (83%) say they would be impartial jurors in spite of receiving direct mail advertising from a lawyer.

* * *

It is true that the vast majority of direct mail recipients (66%) claim that their opinion of the legal profession and the judicial process has not changed since receiving direct mail advertising from an attorney.

19. Rustad and Koenig identified various categories of misuse of empirical data by past *amici* in this Court, several of which apply to *amici*'s discussions of the Bar's "Summary of the Record" surveys in this case: (1) studies produced by litigants; (2) misuse of statistical tools (means versus medians); (3) the use of percentages without reporting absolute numbers; (4) failure to disaggregate data, and (5) anecdotes and bald assertions masquerading as empirical data. 72 N.C. L. Rev. 143-149.

Id. ¶ 11. Nevertheless, the Bar's Summary of the Record omitted those positive findings and the Bar's Brief loosely asserts "that Florida adults have negative feelings about advertising by attorneys" and that "the public feels" direct mail advertising "sacrifices professionalism. . . ." Pet. Brief 3. Florida's estimated population in 1987 was 12,000,000.²⁰ Offering Magid's 200 person unpublished "survey" as part of a "strong empirical record" (Dade County Trial Lawyers Association and the American Board of Trial Advocates as *Amicus Curiae* Brief p.8) demonstrates the fallacy of the attempts to substantiate the contention that a 30-day ban on truthful non-misleading direct mail letters directly, materially and proportionally saves the administration of justice from public opprobrium.

To the Bar's credit, its Brief refrains from serious reliance on its summary. Petitioner's *amici* submissions show little restraint, offering reports "not a matter of record in this case" (Academy of Florida Trial Lawyers *Amicus Curiae* Brief p. 7 n.4) and unpublished surveys, and questionnaires commissioned by themselves or their cohorts — surveys and questionnaires of questionable integrity, and unrelated to direct mail advertising. See Dade County Trial Lawyers Association Brief at 9-13; ATLA Brief at 11-14; Academy of Florida Trial Lawyers Brief at 6-7.²¹

20. See 1993 *Florida Statistical Abstract*, Table 1.20, Bureau of Economic and Business Research College of Business Administration, University of Florida (University Press of Florida 1993, 27th ed).

21. A close examination of the materials in the "Summary of the Record" reveals its deficiency in proving the Bar's case. For example, the Bar's summary of Stephanie Myers' University of Nevada masters thesis "Attorney Advertising: The Effect on Juror Perceptions and Verdicts" (May, 1988), submitted to the Supreme Court of Florida, (see "Summary" R-15-C9 pp. 16-18), omitted Myers' candid disclaimer (p. 62) that "no determination could be made from the data whether jurors voted against the plaintiff's attorney because he/she was a television advertiser or whether those jurors were even aware that he/she advertised at all."

In *Edenfield v. Fane*, 113 S. Ct. 1792 (1993), the Court commented that the Florida Board of Accountancy did not offer empirical data, studies, or anecdotes to support its ban on in person solicitation. *Id.* at 1800. In *In re R.M.J.*, 455 U.S. 191, 203 (1982), the Court left latitude for "appropriate restrictions" if the "method of the advertising suggests that it is inherently misleading or when experience has proved that in fact such advertising is subject to abuse"

Not a scintilla of proof has been offered in this case that truthful, non-misleading direct mail letters to injured persons, which conform to The Florida Bar's existing regulations, are inherently misleading or the subject of abuse. The Bar's effort to escape *Shapiro* is now built on its claim that its surveys and anecdotes prove that such letters have damaged "public confidence in the administration of justice." Pet. Brief 7. The proffers of the Bar and its *amici*, including pages of "newspaper headlines" (Dade County Trial Lawyers Assoc. *amicus* Brief 13-14), do a disservice to *Edenfield's* comment and the *Muller v. Oregon*, 208 U.S. 412 (1908), birth of the "Brandeis brief." Any fair reading of the "record" in this case or the extra-record offerings of the Bar and its *amici* compels the conclusion that neither direct mail specifically, nor lawyer advertising generally, has harmed the administration of justice.²²

22. See, e.g., *The New Yorker Book of Lawyer Cartoons* (Alfred A. Knopf, New York 1994) (7th printing) ("It's the profession we most love to hate, but even better is laughing at it. Which is exactly what these eighty-five riotously funny cartoons from the pages of the New Yorker will have you doing."). Our profession has survived centuries of disparagement and yet the administration of American justice is perhaps the most respected branch of our government. Justice Shaw's comment on The Florida Bar's efforts to stop direct mail advertising puts the Bar's pessimism in perspective: "In sum, it appears to me that the majority, out of frustration and annoyance, is swatting at a troublesome and persistent Bar fly with a sledgehammer." *The Florida Bar: Petition to Amend the Rules Regulating the Florida Bar — Advertising Issues*, 571 So. 2d 451, 475 (Fla. 1990) (Shaw, C.J., concurring in part and dissenting in part).

D. Lawyers Are Not Public Employees, Prisoner, School Children, or Members of the Armed Forces; the "Institutional Speech" Cases Do Not Support the Bar's Argument

The Bar argues that lawyer advertising should be judged as "institutional speech," not as commercial speech. Pet. Brief at 18. Building on its view that officers of the court have endangered the administration of justice by advertising, the Bar offers a series of cases — *Rankin v. McPherson*, 483 U.S. 378 (1987); *Hudson v. Palmer*, 468 U.S. 517 (1984); *Goldman v. Weinberger*, 475 U.S. 503 (1986); *Hazelwood School District v. Kuhlmeier*, 484 U.S. 260 (1988) — to support its new analytical framework.

Summing up those cases, one commentator has written:

[T]he tenor of [those] Supreme Court decisions is that government institutions may discipline insubordinate speech that interferes with institutional goals.

Stanley Ingber, *Judging Without Judgment: Constitutional Irrelevancies and the Demise of Dialogue*, 46 Rutgers L. Rev. (4) 1473, 1565 (1994) (footnote omitted). Any fair analysis of the institutional speech cases demonstrates their irrelevance here.

Nothing in the institutional speech cases suggests that the limitations applicable within certain well-defined institutions should be applied to the citizenry at large, or to regulated professionals. To the contrary, the Court has uniformly noted the limitations of its decisions. *Hudson v. Palmer*: "imprisonment carries with it the circumscription or loss of many significant rights," and prisoners retain those "rights of speech 'not inconsistent with [their] status as . . . prisoner[s] or with the legitimate penological objectives of the corrections system.' "

468 U.S. at 523-24 (internal citation omitted). *Goldman v. Weinberger*: "Our review of military regulations challenged on First Amendment grounds is far more deferential than constitutional review of similar laws or regulations designed for civilian society." 475 U.S. at 507. *Hazelwood School District v. Kuhlmeier*: "[T]he First Amendment rights of students in the public schools 'are not automatically coextensive with the rights of adults in other settings.'" 484 U.S. at 266 (internal citation omitted). *Rankin v. McPherson*: "The determination whether a public employer has properly discharged an employee for engaging in speech requires 'a balance between the interests of the [employee], as a citizen, in commenting upon matters of public concern and the interests of the state, as an employer in promoting the efficiency of the public services it performs through its employees.'" 483 U.S. at 384 (internal citation omitted). To prevail the employer must show that the employee's specific statements "interfered with the efficient functioning of the office" or "discredited the office." 483 U.S. at 389.

The leap between lawyer advertising and an adverse effect on the administration of justice in Florida and the United States requires a faith not supported by the record or the case law. Insubordinate prisoners, military personnel, school children and public employees pose direct threats to the operation of their institutions. Lawyers do not. For example, lawyers who engage in political speech directly seeking to influence the administration of justice in a pending case do not pose "any real or specific threat to the legal process and . . . have the full protection of the First Amendment." *Gentile v. State Bar of Nevada*, 501 U.S. 1030, 1058 (1991). Lawyers who directly sought to advise and solicit potential class members in a pending employment discrimination case could not be restrained from speaking and writing absent "a clear record and specific findings that reflect a weighing of the need for a limitation and the potential interference with the rights of the parties." *Gulf Oil Co.*

v. Bernard, 452 U.S. 89, 101 (1981) (footnote omitted).²³ Where lawyers do directly interfere with the administration of justice, their conduct, of course, is subject to sanctions. Compare *F.T.C. v. Superior Court Trial Lawyers Ass'n*, 493 U.S. 411 (1990) (lawyers' concerted conduct, boycotting low-paying CJA appointments, was an illegal restraint of trade, despite the lawyers' arguments that the boycott was expressive and political speech).

Neither case law, nor fair application of their principles supports the Bar's claim that direct mail letters, or lawyer advertising generally, so disrupts the operation of the administration of justice that *Bates*, *Shapiro*, and their reliance on *Central Hudson* commercial speech analysis should be discarded.

CONCLUSION

The Florida Bar's extensive regulation of direct mail utilizes a series of disclosure and filing requirements. Those requirements seek to balance professionalism and the needs of potential consumers of legal services for information relating to causes of action created by the legislature, common law, and Congress.

23. In *Gulf Oil* the Court noted that the attorneys "stirring up" litigation were like those in *In re Primus*, 436 U.S. 412 (1978), public interest lawyers. 452 U.S. at 100 n.11. If the distinction between public interest lawyering and pecuniary gain was a valid distinction a decade ago, its currency has to be re-evaluated in light of the litany of attorneys' fee decisions since then which demonstrate that practicing law for love and money are not inconsistent. See, e.g., Title 42 U.S.C. § 1988, providing attorneys' fees to prevailing parties to encourage individuals to seek legal redress of unconstitutional state action. *City of Riverside v. Rivera*, 477 U.S. 561, 575-580 (1986).

Rule 4-7.4(b)'s 30-day direct mail ban on truthful, non-misleading letters relating to accidents and personal injuries does not directly, materially or proportionally serve any state interest. Delaying the delivery of truthful non-misleading information will neither protect privacy nor promote confidence in the administration of justice.

The Petitioner's attempt to finesse *Shapero* should be rejected. The Petitioner's invitation to revisit *Bates* and to leave lawyer advertising to state regulation should be declined. The strained legal argument and superficial "social science" survey record on which the argument is based exemplifies the danger of casting away commercial speech analytical doctrine. Professionalism, the public interest, and the First Amendment are best served by honest and objective legal standards. The emotional and exaggerated submissions of the Bar and its *amici* should be rejected, and the decision below should be affirmed.

Respectfully submitted,

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December 6, 1994

APPENDIX A — FLORIDA RULES OF DISCIPLINE**RULE 3-5.1 GENERALLY**

A judgment entered, finding a member of The Florida Bar guilty of misconduct, shall include one or more of the following disciplinary measures:

* * *

(h) **Forfeiture of Fees.** An order of the Supreme Court of Florida or a report of minor misconduct adjudicating a respondent guilty of entering into charging, or collecting a fee prohibited by the Rules Regulating The Florida Bar may order the respondent to forfeit the fee or any part thereof. In the case of a clearly excessive fee, the excessive amount of the fee may be ordered returned to the client, and a fee otherwise prohibited by the Rules Regulating The Florida Bar may be ordered forfeited to The Florida Bar Clients' Security Fund and disbursed in accordance with its rules and regulations.

RULE 4-1.5 FEES FOR LEGAL SERVICES

(a) **Illegal, Prohibited, or Clearly Excessive Fees.** An attorney shall not enter into an agreement for, charge, or collect an illegal, prohibited, or clearly excessive fee or a fee generated by employment that was obtained through advertising or solicitation not in compliance with the Rules Regulating The Florida Bar. A fee is clearly excessive when:

(1) after a review of the facts, a lawyer of ordinary prudence would be left with a definite and firm conviction that the fee exceeds a reasonable fee for services provided to such a degree as to constitute clear overreaching or an unconscionable demand by the attorney; or

Appendix A

(2) the fee is sought or secured by the attorney by means of intentional misrepresentation or fraud upon the client, a nonclient party, or any court, as to either entitlement to, or amount of, the fee.

* * *

(d) Enforceability of Fee Contracts. Contracts or agreements for attorney's fees between attorney and client will ordinarily be enforceable according to the terms of such contracts or agreements, unless found to be illegal, obtained through advertising or solicitation not in compliance with the Rules Regulating The Florida Bar, prohibited by this rule, or clearly excessive as defined by this rule.

STATEMENT OF CLIENT'S RIGHTS

Before you, the prospective client, arrange a contingent fee agreement with a lawyer, you should understand this statement of your rights as a client. This statement is not a part of the actual contract between you and your lawyer, but, as a prospective client, you should be aware of these rights:

1. There is no legal requirement that a lawyer charge a client a set fee or a percentage of money recovered in a case. You, the client, have the right to talk with your lawyer about the proposed fee and to bargain about the rate or percentage as in any other contract. If you do not reach an agreement with one lawyer you may talk with other lawyers.

2. Any contingent fee contract must be in writing and you have 3 business days to reconsider the contract. You may cancel the contract without any reason if you notify your lawyer in

Appendix A

writing within 3 business days of signing the contract. If you withdraw from the contract within the first 3 business days, you do not owe the lawyer a fee although you may be responsible for the lawyer's actual costs during that time. If your lawyer begins to represent you, your lawyer may not withdraw from the case without giving you notice, delivering necessary papers to you, and allowing you time to employ another lawyer. Often, your lawyer must obtain court approval before withdrawing from a case. If you discharge your lawyer without good cause after the 3-day period, you may have to pay a fee for work the lawyer has done.

3. Before hiring a lawyer, you, the client, have the right to know about the lawyer's education, training, and experience. If you ask, the lawyer should tell you specifically about the lawyer's actual experience dealing with cases similar to yours. If you ask, the lawyer should provide information about special training or knowledge and give you this information in writing if you request it.

4. Before signing a contingent fee contract with you, a lawyer must advise you whether the lawyer intends to handle your case alone or whether other lawyers will be helping with the case. If your lawyer intends to refer the case to other lawyers, the lawyer should tell you what kind of fee sharing arrangement will be made with the other lawyers. If lawyers from different law firms will represent you, at least 1 lawyer from each law firm must sign the contingent fee contract.

5. If your lawyer intends to refer your case to another lawyer or counsel with other lawyers, your lawyer should tell you about that at the beginning. If your lawyer takes the case and later decides to refer it to another lawyer or to associate with other

Appendix A

lawyers, you should sign a new contract that includes the new lawyers. You, the client, also have the right to consult with each lawyer working on your case and each lawyer is legally responsible to represent your interests and is legally responsible for the acts of the other lawyers involved in the case.

6. You, the client, have the right to know in advance how you will need to pay the expenses and the legal fees at the end of the case. If you pay a deposit in advance for costs, you may ask reasonable questions about how the money will be or has been spent and how much of it remains unspent. Your lawyer should give a reasonable estimate about future necessary costs. If your lawyer agrees to lend or advance you money to prepare or research the case, you have the right to know periodically how much money your lawyer has spent on your behalf. You also have the right to decide, after consulting with your lawyer, how much money is to be spent to prepare a case. If you pay the expenses, you have the right to decide how much to spend. Your lawyer should also inform you whether the fee will be based on the gross amount recovered or on the amount recovered minus the costs.

7. You, the client, have the right to be told by your lawyer about possible adverse consequences if you lose the case. Those adverse consequences might include money that you might have to pay to your lawyer for costs and liability you might have for attorney's fees to the other side.

8. You, the client, have the right to receive and approve a closing statement at the end of the case before you pay any money. The statement must list all of the financial details of the entire case, including the amount recovered, all expenses, and a precise statement of your lawyer's fee. Until you approve the closing statement you need not pay any money to anyone,

Appendix A

including your lawyer. You also have the right to have every lawyer or law firm working on your case sign this closing statement.

9. You, the client, have the right to ask your lawyer at reasonable intervals how the case is progressing and to have these questions answered to the best of your lawyer's ability.

10. You, the client, have the right to make the final decision regarding settlement of a case. Your lawyer must notify you of all offers of settlement before and after the trial. Offers during the trial must be immediately communicated and you should consult with your lawyer regarding whether to accept a settlement. However, you must make the final decision to accept or reject a settlement.

11. If at any time you, the client, believe that your lawyer has charged an excessive or illegal fee, you have the right to report the matter to The Florida Bar, the agency that oversees the practice and behavior of all lawyers in Florida. For information on how to reach The Florida Bar, call 904-561-5600, or contact the local bar association. Any disagreement between you and your lawyer about a fee can be taken to court and you may wish to hire another lawyer to help you resolve this disagreement. Usually fee disputes must be handled in a separate lawsuit.

Client Signature

Attorney Signature

Date

Date

Statement of Client's Rights amended July 23, 1992, effective Jan. 1, 1993 (605 So.2d 252).

*Appendix A***RULE 4-7.1 COMMUNICATIONS CONCERNING A
LAWYER'S SERVICES**

A lawyer shall not make or permit to be made a false, misleading, deceptive, or unfair communication about the lawyer or the lawyer's services. A communication violates this rule if it:

(a) contains a material misrepresentation of fact or law or omits a fact necessary to make the statement considered as a whole not materially misleading;

(b) is likely to create an unjustified expectation about results the lawyer can achieve or states or implies that the lawyer can achieve results by means that violate the Rules of Professional Conduct or other law;

(c) compares the lawyer's services with other lawyers' services, unless the comparison can be factually substantiated; or

(d) contains a testimonial.

Amended Dec. 21, 1990, effective Jan. 1, 1991 (571 So.2d 448);
July 23, 1992, effective Jan. 1, 1993 (605 So.2d 252).

RULE 4-7.2 ADVERTISING

(a) **Permissible Forms of Advertising.** Subject to all the requirements set forth in this subchapter 4-7, including the filing requirements of rule 4-7.5, a lawyer may advertise services through public media, such as a telephone directory, legal directory, newspaper or other periodical, billboards and other signs, radio, television, and recorded messages the public may access by dialing a telephone number, or through written

Appendix A

communication not involving solicitation as defined in rule 4-7.4. These rules shall not apply to any advertisement broadcast or disseminated in another jurisdiction in which the advertising lawyer is admitted if such advertisement complies with the rules governing lawyer advertising in that jurisdiction and is not intended for broadcast or dissemination within the State of Florida.

(b) **Single Voice Requirement; Employee of Lawyer or Law Firm.** Advertisements on the electronic media such as television and radio may contain the same factual information and illustrations as permitted in advertisements in the print media, but the information shall be articulated by a single voice, with no background sound other than instrumental music. The voice may be that of a full-time employee of the firm whose services are advertised; it shall not be that of a celebrity whose voice is recognizable to the public. The lawyer or full-time employee of the firm whose services are being advertised may appear on screen or on radio.

(c) **Name of Lawyer or Lawyer Referral Service.** All advertisements and written communications pursuant to these rules shall include the name of at least 1 lawyer or the lawyer referral service responsible for their content.

(d) **Disclosure Statement.** Except as provided in this subdivision, all advertisements, other than lawyer referral service advertisements shall contain the following disclosure: "The hiring of a lawyer is an important decision that should not be based solely upon advertisements. Before you decide, ask us to send you free written information about our qualifications and experience." Lawyer referral service advertisements shall contain the following disclosure: "The hiring of a lawyer is an

Appendix A

important decision. Before you decide to hire the lawyer to whom you are referred, ask that lawyer for written information about that lawyer's qualifications and experience." These disclosures need not appear in electronic advertisements or advertisements in the public print media that contain no illustrations and no information other than that listed in subdivision (n)(1)-(10) of this rule.

(e) Dramatizations Prohibited. There shall be no dramatization in any advertisement in any medium.

(f) Use of Illustrations. Illustrations used in advertisements shall present information that can be factually substantiated and is not merely self-laudatory.

(g) Fields of Practice. Every advertisement and written communication that indicates 1 or more areas of law in which the lawyer or law firm practices shall conform to the requirements of rule 4-7.6.

(h) Disclosure of Liability for Expenses Other Than Fees. Every advertisement and written communication that contains information about the lawyer's fee, including those that indicate no fee will be charged in the absence of a recovery, shall disclose whether the client will be liable for any expenses in addition to the fee. Additionally, advertisements and written communications indicating that the charging of a fee is contingent on outcome or that the fee will be a percentage of the recovery shall disclose (1) that the client will be liable for expenses regardless of outcome, if the lawyer so intends to hold the client liable; and (2) whether the percentage fee will be computed before expenses are deducted from the recovery, if the lawyer intends to compute the percentage fee before deducting the expenses.

Appendix A

(i) Period for Which Advertised Fee Must Be Honored. A lawyer who advertises a specific fee or range of fees for a particular service shall honor the advertised fee or range of fees for at least 90 days unless the advertisement specifies a shorter period; provided that, for advertisements in the yellow pages of telephone directories or other media not published more frequently than annually, the advertised fee or range of fees shall be honored for no less than 1 year following publication.

(j) Self Laudatory Statements. A lawyer shall not make statements that are merely self-laudatory or statements describing or characterizing the quality of the lawyer's services in advertisements and written communications; provided that this provision shall not apply to information furnished to a prospective client at that person's request or to information supplied to existing clients.

(k) Firm Name. A lawyer shall not advertise services under a name that violates the provisions of rule 4-7.7.

(l) Location of Practice. All advertisements and written communications provided for under these rules shall disclose the geographic location, by city or town, of the office in which the lawyer or lawyers who will actually perform the services advertised principally practice law. If the office location is outside a city or town, the county in which the office is located must be disclosed. A lawyer referral service shall disclose the geographic area in which the lawyer practices when a referral is made.

(m) Payment by Nonadvertising Lawyer. No lawyer shall, directly or indirectly, pay all or a part of the cost of an advertisement by a lawyer not in the same firm unless the

Appendix A

advertisement discloses the name and address of the nonadvertising lawyer, the relationship between the advertising lawyer and the nonadvertising lawyer, and whether the advertising lawyer may refer any case received through the advertisement to the nonadvertising lawyer.

(n) Permissible Content of Advertisements. The following information in advertisements and written communications shall be presumed not to violate the provisions of rule 4-7.1:

(1) subject to the requirements of this rule and rule 4-7.7, the name of the lawyer or law firm, a listing of lawyers associated with the firm, office addresses and telephone numbers, office and telephone service hours, and a designation such as "attorney" or "law firm";

(2) date of admission to The Florida Bar and any other bars and a listing of federal courts and jurisdictions other than Florida where the lawyer is licensed to practice;

(3) technical and professional licenses granted by the state or other recognized licensing authorities and educational degrees received, including dates and institutions;

(4) foreign language ability;

(5) fields of law in which the lawyer practices, subject to the requirements of rule 4-7.6;

(6) prepaid or group legal service plans in which the lawyer participates;

Appendix A

(7) acceptance of credit cards;

(8) fee for initial consultation and fee schedule, subject to the requirements of subdivisions (h) and (i) of this rule;

(9) a listing of the name and geographic location of lawyer or law firm as a sponsor of a public service announcement or charitable, civic, or community program or event; and

(10) a lawyer referral service may advertise its name, location, telephone number, the referral fee charged, its hours of operation, the process by which referrals are made, the areas of law in which referrals are offered, the geographic area in which the lawyers practice to whom those responding to the advertisement will be referred, and, if applicable, its nonprofit status, its status as a lawyer referral service approved by The Florida Bar, and the logo of its sponsoring bar association.

(o) Advertising in Law Directory. Nothing in this rule prohibits a lawyer or law firm from permitting the inclusion in law lists and law directories intended primarily for the use of the legal profession of such information as has traditionally been included in these publications.

(p) Maintaining Copies of Advertisements. A copy or recording of an advertisement or written or recorded communication shall be submitted to the standing committee on advertising in accordance with the requirements of rule 4-7.5, and the lawyer shall retain a copy or recording for 3 years after its last dissemination along with a record of when and where it was used.

(q) Payment for Recommendations; Lawyer Referral

Appendix A

Service Fees. A lawyer shall not give anything of value to a person for recommending the lawyer's services, except that a lawyer may pay the reasonable cost of advertising or written or recorded communication permitted by these rules, may pay the usual charges of a lawyer referral service or other legal service organization, and may purchase a law practice in accordance with rule 4-1.17.

Amended Dec. 21, 1990, effective Jan. 1, 1991 (571 So.2d 448); July 23, 1992, effective Jan. 1, 1993 (605 So.2d 252); amended effective July 1, 1993 (621 So.2d 1032).

**RULE 4-7.4 DIRECT CONTACT WITH
PROSPECTIVE CLIENTS**

(a) **Solicitation.** A lawyer shall not solicit professional employment from a prospective client with whom the lawyer has no family or prior professional relationship, in person or otherwise, when a significant motive for the lawyer's doing so is the lawyer's pecuniary gain. A lawyer shall not permit employees or agents of the lawyer to solicit in the lawyer's behalf. A lawyer shall not enter into an agreement for, charge, or collect a fee for professional employment obtained in violation of this rule. The term "solicit" includes contact in person, by telephone, telegraph, or facsimile, or by other communication directed to a specific recipient and includes any written form of communication directed to a specific recipient and not meeting the requirements of subdivision (b) of this rule.

(b) Written Communication.

(1) A lawyer shall not send, or knowingly permit to be sent, on the lawyer's behalf or on behalf of the lawyer's firm or partner,

Appendix A

an associate, or any other lawyer affiliated with the lawyer or the lawyer's firm, a written communication to a prospective client for the purpose of obtaining professional employment if:

(A) the written communication concerns an action for personal injury or wrongful death or otherwise relates to an accident or disaster involving the person to whom the communication is addressed or a relative of that person, unless the accident or disaster occurred more than 30 days prior to the mailing of the communication;

(B) the written communication concerns a specific matter and the lawyer knows or reasonably should know that the person to whom the communication is directed is represented by a lawyer in the matter;

(C) it has been made known to the lawyer that the person does not want to receive such communications from the lawyer;

(D) the communication involves coercion, duress, fraud, overreaching, harassment, intimidation, or undue influence;

(E) the communication contains a false, fraudulent, misleading, deceptive, or unfair statement or aim or is improper under rule 4-7.1; or

(F) the lawyer knows or reasonably should know that the physical, emotional, or mental state of the person makes it unlikely that the person would exercise reasonable judgment in employing a lawyer.

Appendix A

(2) Written communications to prospective clients for the purpose of obtaining professional employment are subject to the following requirements:

(A) Each page of such written communications shall be plainly marked "advertisement" in red ink, and the lower left corner of the face of the envelope containing a written communication likewise shall carry a prominent, red "advertisement" mark. If the written communication is in the form of a self-mailing brochure or pamphlet, the "advertisement" mark in red ink shall appear on the address panel of the brochure or pamphlet. Brochures solicited by clients or prospective clients need not contain the "advertisement" mark.

(B) A copy of each such written communication and a sample of the envelopes in which the communications are enclosed shall be filed with the standing committee on advertising either prior to or concurrently with the mailing of the communication to a prospective client, as provided in rule 4-7.5. The lawyer also shall retain a copy of each written communication for 3 years. If written communications identical in content are sent to 2 or more prospective clients, the lawyer may comply with this requirement by filing a single copy together with a list of the names and addresses of persons to whom the written communication was sent, retaining the same information. If the lawyer periodically sends the identical communication to additional prospective clients, lists of the additional names and addresses shall be filed with the committee no less frequently than monthly.

(C) Written communications mailed to prospective clients shall be sent only by regular U.S. mail not by registered mail or other forms of restricted delivery.

Appendix A

(D) No reference shall be made in the communication to the communication's having received any kind of approval from The Florida Bar.

(E) Every written communication shall be accompanied by a written statement of the lawyer's or law firm's qualifications conforming to the requirements rule 4-7.3.

(F) If a contract for representation is mailed with the written communication, the top of each page of the contract shall be marked "SAMPLE" in red ink in a type size 1 size larger than the largest type used in the contract and the words "DO NOT SIGN" shall appear on the client signature line.

(G) The first sentence of any written communication concerning a specific matter shall be: "If you have already retained a lawyer for this matter, please disregard this letter."

(H) Written communications shall be on letter-sized paper rather than legal-sized paper and shall not be made to resemble legal pleadings or other legal documents. This provision does not preclude the mailing of brochures and pamphlets.

(I) If a lawyer other than the lawyer whose name or signature appears on the communication will actually handle the case or matter, or if the case or matter will be referred to another lawyer or law firm, any written communication concerning a specific matter shall include a statement so advising the client.

(J) Any written communication prompted by a specific

Appendix A

occurrence involving or affecting the intended recipient of the communication or a family member shall disclose how the lawyer obtained the information prompting the communication.

(K) A written communication seeking employment by a specific prospective client in a specific matter shall not reveal on the envelope, or on the outside of a self-mailing brochure or pamphlet, the nature of the client's legal problem.

Former Rule 4-7.3 renumbered as 4-7.4 Oct. 22, 1987, effective Jan. 1, 1988 (519 So.2d 971). Amended Dec. 21, 1990, effective Jan. 1, 1991 (571 So.2d 448); July 23, 1992, effective Jan. 1, 1993 (605 So.2d 252).

RULE 4-7.5 EVALUATION OF ADVERTISEMENTS

(a) **Advisory Opinion.** A lawyer may obtain an advisory opinion concerning the compliance of a contemplated advertisement or written communication with these rules in advance of disseminating the advertisement or communication by submitting the material and fee specified in subdivision (d) to the standing committee on advertising at least 15 days prior to such dissemination. If the committee finds that the advertisement complies with these rules, the lawyer's voluntary submission shall be deemed to satisfy the filing requirement set forth in subdivision (b) of this rule.

(b) **Filing Copy of Advertisement.** Subject to the exemptions stated in subdivision (c) of this rule, any lawyer who advertises services through any public media or through written communication not involving solicitation as defined in rule 4-7.4

Appendix A

shall file a copy of each such advertisement with the standing committee on advertising for evaluation of compliance with these rules. The copy shall be filed either prior to or concurrently with the lawyer's first dissemination of the advertisement or written communication and shall be accompanied by the information and fee specified in subdivision (d).

(c) **Exemptions From Filing Requirement.** The following are exempt from the filing requirements of subdivision (b) of this rule:

(1) Any advertisement in any of the public media, including the yellow pages of telephone directories, that contains no illustrations and no information other than that set forth in rule 4-7.2(n)(1)-(10). This exemption extends to television advertisements only if the visual display featured in such advertisements is limited to the words spoken by the announcer.

(2) A brief announcement in any of the public media that identifies a lawyer or law firm as a contributor to a specified charity or as a sponsor of a specified charitable, community, or public interest program, activity, or event, provided that the announcement contains no information about the lawyer or law firm other than name, the city where the law offices are located, and the fact of the sponsorship or contribution.

(3) A listing or entry in a law list.

(4) A newsletter mailed only to existing clients or other lawyers.

(5) Professional announcement cards stating new or changed associations, new offices, and similar changes relating

Appendix A

to a lawyer or law firm, and that are mailed only to other lawyers, relatives, close personal friends and existing clients.

(d) Contents of Filing. A filing with the committee as required by subdivision (b) or as permitted by subdivision (a) shall consist of:

(1) a copy of the advertisement or communication in the form or forms in which it is to be disseminated e.g. videotapes, audiotapes, print media, photographs of outdoor advertising);

(2) a transcript, if the advertisement or communication is on videotape or audiotape;

(3) a statement listing all media in which the advertisement or communication will appear, the anticipated frequency of use of the advertisement or communication in each medium in which it will appear, and the anticipated time period during which the advertisement or communication will be used; and

(4) a fee to be set by the board of governors but not exceeding \$50, payable to The Florida Bar, to offer the cost of evaluation and review of advertisement submitted under these rules and the cost of enforcing these rules.

(e) Evaluation of Advertisements. The committee shall evaluate all advertisements and written communications filed with it pursuant to this rule compliance with the applicable rules set forth in this subchapter 4-7. The committee shall complete its evaluation within 15 days of receipt of a filing unless the committee determines that there is reasonable doubt that the advertisement or written communication is in compliance with the rules and that further examination is warranted but cannot be completed within the 15-day period, and so advises the lawyer

Appendix A

within the 15-day period. In the latter event, the committee shall complete its review as promptly as the circumstances reasonably allow. If the committee does not send any communication to the lawyer within 15 days, the advertisement will be deemed approved.

(f) Substantiating Information. If requested to do so by the committee, the filing lawyer shall submit information to substantiate representations made or implied in that lawyer's advertisement or written communication.

(g) Notice of Noncompliance; Effect of Continued Use of Advertisement. When the committee determines that an advertisement or written communication is not in compliance with the applicable rules, the committee shall advise the lawyer that dissemination or continued dissemination of the advertisement or written communication may result in professional discipline.

(h) Committee Determination Not Binding; Evidence. A finding by the committee of either compliance or noncompliance shall not be binding in a grievance proceeding, but may be offered as evidence.

(i) Change of Circumstances; Refiling Requirement. If a change of circumstances occurring subsequent to the committee's evaluation of an advertisement or written communication raises a substantial possibility that the advertisement or communication has become false or misleading as a result of the change in circumstances, the lawyer shall promptly refile the advertisement or a modified advertisement with the committee along with an explanation of the change in circumstances and an additional fee to be set by the board of governors but not exceeding \$50.

Appendix A

Added Dec. 21, 1990, effective Jan. 1, 1991 (571 So.2d 448).
Amended July 23, 1992, effective Jan. 1, 1993 (605 So.2d 252);
amended effective July 1, 1993 (621 So.2d 1032).

CHAPTER 15. REVIEW OF LAWYER ADVERTISEMENTS AND SOLICITATIONS

15.1 GENERALLY

RULE 15-1.1 PURPOSE

The Florida Bar, as an official arm of the Supreme Court of Florida, is charged with the duty of enforcing the rules governing lawyer advertising and solicitation and with assisting members of The Florida Bar to advertise their services in a manner beneficial to both the public and the legal profession. The board of governors, pursuant to the authority vested in it under rule 2-8.3, shall create a standing committee on advertising to advise members of The Florida Bar on permissible advertising and solicitation practices. It shall be the duty of the committee to administer the advertising evaluation program set forth in rule 4-7.5.

Added Dec. 20, 1990, effective Jan. 1, 1991 (571 So.2d 451).
Amended July 23, 1992, effective Jan. 1, 1993 (605 So.2d 252).

15-2. STANDING COMMITTEE ON ADVERTISING

RULE 15-2.1 MEMBERSHIP AND TERMS

The standing committee on advertising shall consist of 4 members of The Florida Bar and 3 nonlawyers representing the public. Members of the committee shall be appointed by the

Appendix A

president-elect of The Florida Bar, as provided in rule 2-8.1. The president-elect shall designate the chair and vice-chair, with the advice and consent of the board of governors. Members of the committee shall serve staggered 3-year terms. No member may serve more than 2 consecutive terms. A quorum shall consist of a majority of the members.

Added Dec. 21, 1990, effective Jan. 1, 1991 (571 So.2d 451).
Amended July 23, 1992, effective Jan. 1, 1993 (605 So.2d 252).

RULE 15-2.2 FUNCTIONS

It shall be the task of the committee to evaluate all advertisements filed with the committee for compliance with the rules governing advertising and solicitation and to provide written advisory opinions concerning compliance to the respective filers, to develop a handbook on advertising for the guidance of and dissemination to members of The Florida Bar, and to recommend to the board of governors from time to time such amendments to the Rules of Professional Conduct as the committee may deem advisable.

Added Dec. 21, 1990, effective Jan. 1, 1991 (571 So.2d 451).
Amended July 23, 1992, effective Jan. 1, 1993 (605 So.2d 252).

RULE 15-2.3 REIMBURSEMENT FOR PUBLIC MEMBERS

The nonlawyer public members of the standing committee shall be reimbursed for reasonable travel and related expenses associated with attendance at meetings of the committee.

Added Dec. 21, 1990, effective Jan. 1, 1991 (571 So.2d 451).
Amended July 23, 1992, effective Jan. 1, 1993 (605 So.2d 252).